

HE Green Paper: response to question 9

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This post is part of an [ongoing series](#) where I intend to develop my full *personal* (not institutional) response to the HE Green Paper. Comments are welcome to refine this.

The Green Paper asks in Question 9:

Do you agree with the proposed approach to incentives for the different types of provider? Please give reasons for your answers.

No. The proposed incentives offered for different providers in a proposed TEF are uneven. For existing traditional providers they seem to mostly consist of punitive sticks while for alternative providers they are incentivized carrots.

For instance, the Green Paper notes that:

We have heard from the sector that they expect the TEF will offer significant reputational advantage and help recruit students from both home and internationally. We expect this will take time to develop and mature, so we believe additional incentives are required to drive provider behaviour.

I agree only with the latter part of this. If the TEF goes ahead, it will take a very very long time to develop and mature. Please see my [response to question 4](#) for more detail on why the reputational benefit is unlikely to act as a sufficient incentive structure and/or international marker of quality.

Yet it is clear that the proposed additional “incentives” of “fee cap and fee loan cap uplifts” are miniscule at best in their positive incentives. Inflation is close to zero with very little sign of an increase, so any “uplift” is merely a real-term flat-line. On the other hand, the threat of a “fee cap” is very real here as a de-funding mechanism that will force institutions to shed staff through painful redundancies, plunging them into a negative spiral that results in “market exit” as the Paper euphemistically calls it. By restricting resources, institutions that do not currently fare well at TEF will not be able to improve. There is, therefore, very little in the way of “incentives” here for existing providers, only threats.

Yet, while there is mention of capping fees at traditional institutions, alternative providers are only given incentives of “uplift” and removing numbers controls through the AP Pool. There is no talk of capping APs as there is of traditional institutions, only of removing any existing cap when alternative providers fare well.

If this is really about incentivizing good teaching and not simply about a government engineering the collapse of one or more existing institutions, then I would suggest that several changes are needed here:

1. Incentives should really be incentives, not threats.
2. Incentives should apply across all institutions with Degree Awarding Powers.
3. Incentives should be constructed so that they benefit students, not just institutions. Considering that this Green Paper claims to be centred on students, it is a highly conflicted document since increasing the cost of a degree for future students is punitive.
4. Constructive *help* to raise the standard of teaching should be provided *before* de-funding institutions, which will only make it harder/impossible for them to improve. This could take the form of a suitable *warning period* in which institutions are allowed to maintain a stable financial base for a TEF cycle. This seems especially important in any launch period when institutions have no idea what they are being judged on and how the process will run. The Green Paper, please remember, gives no details of process or metrics for actually measuring teaching and institutions are being given insufficient time to prepare.

5. The government should also be wary of lawsuits if metrics are badly deployed. As Professor Tom Ward, pro vice-chancellor (education) at Durham University, told a Westminster Higher Education Forum event in November 2015, the threat of negative reputational consequence is likely to lead institutions to sue if the metrics are not 100% robust and if they are penalised. Furthermore, if the process is not entirely transparent, the risk of lawsuits will be substantially increased.